

Tentative Rulings for August 11, 2026

Department PS1

To request oral argument, you must notify Judicial Secretary Carol Delfosse-Kidd at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2104906	MARTINEZ ARITA VS HALO MEDICAL GROUP	SPECIAL MOTION BY DEPARTMENT OF HEALTH CARE SERVICES

Tentative Ruling: No tentative ruling. Hearing is scheduled for 10.08.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2200362	GREGORY SCOTT MCALLISTER, AN INDIVIDUAL VS R. SCOTT KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005	MOTION FOR RELIEF FROM JUDGMENT BY R. SCOTT KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005, KACI L. KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005

Tentative Ruling: No tentative ruling. Hearing continued to 8.18.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507831	MORALES VS CHRISTOPHER PYLE, CPA, INC.	MOTION FOR LEAVE TO AMEND ON COMPLAINT OF CASTULA MORALES BY CASTULA MORALES

Tentative Ruling: California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“if the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment

involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

The declaration of Plaintiff's attorney Jay S. Rothman indicates that upon receipt of discovery responses of Defendant Christopher Pyle, CPA, Inc., he became aware of additional issues to include in an amended complaint including alleged noncompliance with meal and rest breaks and incorrect wage statements (Declaration ¶¶ 4). These alleged deficiencies were discovered in May of 2026, and the proposed FAC addresses those issues. A red-line copy is attached to Plaintiff's motion outlining the changes in the complaint. The reasoning for not filing the motion earlier is "because no trial date has yet been set" (Declaration ¶¶ 9).

Defendants' opposition focuses on knowledge by Plaintiff, and that she should have/did know of the alleged deficiencies in 2023, yet the opposition fails to cite authority that the Plaintiff should be prohibited from amending based on her awareness of facts that could have been pleaded in the original complaint. Defendants' argument challenges the factual sufficiency of the FAC as well, although acknowledging it is not asking the court to adjudicate a demurrer in advance. (Opposition Section D).

The court finds a lack of prejudice by granting leave to amend. The court also finds that the redline copy is sufficient to comply with California Rule of Court § 3.1324. And while Plaintiff's statement is they didn't file the motion earlier because of lack of a trial date, it should be noted that according to the Declaration of Plaintiff's attorney, after the discovery received in May he attempted to obtain a stipulation from defense counsel. After that was rejected, the motion was filed on 7.30.26.

Plaintiff's Motion for Leave to File First Amended Complaint GRANTED.

Plaintiff to file the Proposed First Amended Complaint attached as Exhibit 1 to the Motion within 5 days.

Case Management Conference continued to 10.09.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600939	SPRAGUE VS TILDEN-COIL CONSTRUCTORS, INC.	DEMURRER ON COMPLAINT OF JERRY SPRAGUE BY PROCRAFT CONSTRUCTION, INC.

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material

facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

The Worker's Compensation Act covers employee injuries where: (1) both the employer and employee are subject to the provisions of the Workers' Compensation Act; (2) the employee is performing service related to and within the course of employment; (3) the injury is proximately caused by employment; and (4) the employee's injury is not self-inflicted, does not arise out of an altercation in which the injured employee is the initial physical aggressor, or in the course of the employee's commission of certain felonies or while intoxicated or engaged in voluntary off-duty recreational activities. (See Labor Code § 3600(a).) If these conditions do not exist, the employee may bring a civil action. (Labor Code §§3600-3602.) As stated in *Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund* (2001) 24 Cal.4th 800, 811-812, if the acts are a normal part of the employment relationship or worker's compensation process, or the motive does not violate a fundamental state policy, then the cause of action is barred; otherwise, it may go forward. The court focused on whether the "acts or motives that establish the elements of the cause of action and considers whether these acts or motives constitute 'a risk reasonably encompassed within the compensation bargain. [citation.] If they do, then the exclusive remedy provisions govern and bar the cause of action. If they do not, then the exclusive remedy provisions are inapplicable because the malfeasor is *no longer* acting as an 'employer' as understood in these provisions." (*Id.* at 819-820.) The exclusivity rule does not apply when the distress arises out of an employer's illegal discrimination practice or harassment. (*Nazir v. United Airlines* (2009) 178 Cal.App.4th 243, 288.)

The Complaint alleges "Plaintiff Jerry Sprague was employed by Defendant Procraft Construction, Inc as a heavy equipment operator." (Comp. p.5.) On the day Plaintiff was injured, he was working at the Palm Springs Homeless Navigation Center. (*Ibid.*) Plaintiff's supervisor told him to grab a 6 by 6 foot spool and take it to a location that required him to walk through trenches. (*Ibid.*) "Plaintiff came to a trench he had to walk by around the corner and the trench didn't have a walkway bigger than eight inches. As he attempted to walk by the trench, the side of the trench gave way as one leg went into the trench and the other leg stayed topside while the spool plaintiff had on his shoulder landed on his ankle and tore his ligaments." (*Ibid.*) The allegations make clear Plaintiff was injured during the course and scope of his employment with Defendant Pro-Craft Construction. This means the workers' compensation exclusivity rule applies. Plaintiff then alleges Defendant Tilden-Coil Constructors, Inc. is liable for his injuries because it "knew of a concealed, dangerous condition on the property with the trenches that the contractor Pro-Craft Construction, Inc., could not have reasonably discovered and the general contractor failed to warn of those dangers." (Comp. p.5.) Plaintiff alleges Defendants Tilden-Coil, Mike Zarp, Inc., and Giant Power Systems, Inc., "negligently owned, designed, constructed, maintained the trenches and did not install the proper protection systems including benching, shielding, shoring, trench boxes and/or placing caution tape." (*Ibid.*) Finally, Plaintiff alleges "Defendant Procraft Construction Inc. acted recklessly and in absolute disregard for its employee safety by making plaintiff, a heavy

equipment operator, work the job of a laborer which is against union rules and to carry more than 100 pounds walking between trenches.” (Ibid.)

In Opposition, Plaintiff argues two exceptions to the workers’ compensation exclusivity rule apply – the dual capacity exception and the fraudulent concealment exception. Plaintiff does not explain either exception or provide any legal authority in support of either exception. Even if these exceptions apply, Plaintiff has not pled in the Complaint that the exceptions apply or provided any facts to support applying the exceptions.

Defendant Pro-Craft Construction, Inc’s Demurrer is SUSTAINED as to Plaintiff’s Complaint in its entirety.

Plaintiff to file amended complaint within 15 days.

Case Management Conference continued to 10.21.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600939	SPRAGUE VS TILDEN-COIL CONSTRUCTORS, INC.	MOTION TO STRIKE COMPLAINT OF JERRY SPRAGUE BY PROCRAFT CONSTRUCTION, INC.

Tentative Ruling: Defendant Pro-Craft Construction, Inc’s Motion to Strike is deemed MOOT in light of the court’s ruling on Defendant’s Demurrer to Plaintiff’s Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2605126	KINT VS. MID-CENTURY INSURANCE COMPANY, A SUBSIDIARY OF FARMERS INSURANCE	HEARING ON PETITION FOR COMPEL ARBITRATION

Tentative Ruling: No tentative ruling. No proof of service of petition on file. Hearing is continued to 9.29.26.